

the SAC. The Court finds that the City's demurrer is mooted by the filing of the SAC. Also on May 4, 2026, Plaintiff filed a Request for Dismissal as to: Kevin Orepeza, City of Shasta Lake, Shasta Lake Sheriff's Department, and Don D. Davis. The clerk did not enter the dismissal because the form is incomplete. Plaintiff must mark either 1.a.(1), or 1.a.(2) indicating whether the dismissal is with or without prejudice.

In light of the SAC not naming the City, and Plaintiff's filing of the Request for Dismissal of the City, it appears clear to the Court that this Demurrer is moot, and the Plaintiff does not intend to proceed against the City in this action. The parties should appear today to confirm the status of the case.

MIDLAND CREDIT MANAGEMENT, INC. VS. WEBB

CASE NUMBER: 26CVG-00137

Tentative Ruling on Motion to Set Aside Default: Defendant Jason Webb moves to set aside default judgment pursuant to CCP 473(b) and 473.5 on the grounds of excusable neglect and lack of actual notice.

Merits. CCP § 473(b) permits the Court to set aside a default or order entered against an aggrieved party due to mistake, surprise, inadvertence or excusable neglect. The burden is on the moving party to show that the neglect was *excusable*: i.e., that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58. "[T]he acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances." *Id.* The moving party has the burden of proof to establish one of these conditions by a preponderance of the evidence. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62. The moving party must submit affidavits or testimony demonstrating a reasonable cause for the default. *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1491. CCP § 473(b) is to be liberally construed to further the policy of adjudicating legal controversies on the merits. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146.

CCP 473.5 provides for set aside when service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action.

Here, Defendant has submitted sufficient evidence that his failure to file a responsive pleading was due to failure to receive actual notice. Plaintiff received timely notice of this Motion and did not file an opposition. The Court also notes that Plaintiff recently filed an Amended Proof of Personal Service of Summons, which indicates process was served April 28, 2026.

The Motion to Set Aside Default is **GRANTED**. The Default is **VACATED**. A proposed order has been lodged and will be executed. Defendant is granted ten days leave from notice of entry of order to file a responsive pleading. Note that this necessarily gives Plaintiff more than 30 days from the April 28, 2026 date of service, because this motion was pending when the Amended Proof of Service was filed and is set to be heard on June 8, 2026.

ROBINSON, ET AL. VS. THE STATE OF CALIFORNIA, ET AL.
CASE NUMBER: 25CV-0208108

Tentative Ruling on Two Motions to Compel Further Responses and Request for Special Sanctions: Plaintiffs have filed two separate, but substantially similar, motions to compel further responses to Form Interrogatories, Set One, from Defendant Helix Environmental Planning, Inc., and Defendant Whitney Environmental Consulting, Inc. DBA Foothill Associates (“Whitney”). Specifically, Plaintiffs seek further responses to requests 12.1-12.7, 13.1-13.2, 14.1-14.2 and 15.1 by removing all objections and providing any resulting information previously withheld, further responses to Form Interrogatory Request 15.1 regarding Helix and Whitney’s affirmative defenses, and monetary sanctions against each Defendant in the amount of \$1,050.00.

Merits. A party propounding interrogatories may move for further responses if the responses are evasive/incomplete or contain unmeritorious objections. CCP § 2030.300(a)(1) & (3). A response to interrogatories must be served within 30 days after service of the interrogatories. CCP § 2030.260. Failure to timely respond results in a waiver of objections to the interrogatories. CCP § 2030.290(a).

On December 15, 2025, Plaintiffs served Form Interrogatories, Set One, on each Defendant. No responses were provided within the statutory time required. On January 20, 2026, Defendants advised they would provide responses by February 3, 2026. No responses were provided on that date. On February 25, 2026, Defendants requested additional time to respond and the parties agreed to the date of March 11, 2026. No responses were provided on that date. On March 17, 2026, Plaintiffs’ counsel sent a meet and confer letter to Defendants requesting verified responses no later than March 19, 2026, or motions to compel would be filed and sanctions sought. Defendants replied that responses would be provided by March 20, 2026. No responses were provided on that date. On March 23, 2026, Defendants responded to the Form Interrogatories, Set One. Plaintiffs sent a meet and confer letter on April 22, 2026, addressing deficiencies related to the objections and request 15.1, and requested further responses no later than April 28, 2026. Defendants responded stating they would provide further responses by May 5, 2026, but maintained they were permitted the objections. No further responses have been provided. The Declaration of Estee Lewis establishes that sufficient efforts were made to meet and confer.

Plaintiffs have established that objections are waived and the responses to requests 15.1 are evasive or incomplete. The requests were made in good faith and the information sought is relevant. Defendants have not opposed the motion.

Sanctions. The imposition of sanctions is mandatory under CCP § 2030.300(d) unless the party subject to sanctions acted with substantial justification or other circumstances would make the imposition of sanctions unjust. Defendants have failed to show substantial justification for their delay in providing further responses to the discovery request.

Plaintiffs request \$1050.00 from each Defendant in attorney fees for bringing this motion. The Court finds the hourly rate requested and time spent reasonable. In addition to preparation of the motion, Plaintiffs request additional attorney fees of \$700.00 to draft a reply and attend the hearing. Although Plaintiffs filed replies, Defendant did not file an opposition therefore no replies were necessary. The Court will reduce this request by one hour. Sanctions will be imposed against each Defendant in the amount of \$875.00.

Both of Plaintiffs' Motions to Compel Further Responses are **GRANTED**. Defendant Helix Environmental Planning, Inc., and Defendant Whitney Environmental Consulting, Inc. DBA Foothill Associates are each ordered to provide further responses within 15 days of notice of entry of order to requests 12.1-12.7, 13.1-13.2, 14.1-14.2 and 15.1 by removing all objections and providing any information previously withheld based on any objection and further responses to request 15.1 regarding affirmative defenses. Sanctions are imposed against each Defendant in the amount of \$875.00. Sanctions are payable within 30 days of notice of entry of order. Two proposed orders have been lodged and will be modified to reflect the Court's ruling.

ROBINSON, ET AL. VS. THE STATE OF CALIFORNIA, ET AL.

CASE NUMBER: 25CV-0208108

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on May 15, 2026, to all Defendants and their respective counsel for failure to appear on May 11, 2026, as ordered on February 4, 2026. Defendant City of Anderson has filed an adequate response to the OSC. The OSC is **DISCHARGED** as to Defendant City of Anderson only. Defendants Helix Environmental Planning, Inc. and Whitney Environmental Consulting, Inc. DBA Foothill Associates have not filed a response to the OSC. Sanctions will be imposed in the amount of \$250 against each Defendant and their counsel. The clerk is instructed to prepare a separate Order of Sanctions for Helix Environmental Planning, Inc. and Whitney Environmental Consulting, Inc. DBA Foothill Associates. The matter is also set for a review hearing regarding trial setting today at 9:00 a.m.

ROCKY TOP RENTALS, LLC VS. VAN NORMAN ERICKSON, ET AL.

CASE NUMBER: 25CVG-02320

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff Rocky Top Rentals, LLC seeks an order deeming admitted the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Arnold John Erickson by mail on March 11, 2026. The Motion has been properly noticed, and is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c). Plaintiff requests sanctions of \$1,685.00 in attorney fees and costs required to bring this Motion. That amount consists of 5 attorney hours at a rate of \$325.00 per hour, plus the \$60.00 filing fee. The Court finds this amount reasonable and it will be awarded.

Plaintiff's Motion to Deem Request for Admission, Set One Admitted by Defendant Arnold John Erickson is **GRANTED**. Sanctions of \$1,685.00 are imposed against Defendant Arnold John Erickson and are payable within 30 days of notice of entry of order. A proposed order has been